IN THE CIRCUIT COURT OF JEFFERSON COUNTY, ARKANSAS
6TH JUDICIAL DISTRICT, DIVISION 2

STATE OF ARKANSAS v. KEVIN J. SIMMONS
Case No.: 26CR-25-0201

DEFENSE MEMORANDUM REGARDING CRIMINAL HISTORY SCORE CALCULATION

I. INTRODUCTION

COMES NOW the Defendant, Kevin J. Simmons, by and through his attorney of record, James T. Crawford, Esq., and respectfully submits this memorandum challenging the criminal history score of 8 as calculated by the Pre-Sentence Investigation Report ("PSI") and relied upon by the Court in determining the presumptive sentence range at the sentencing hearing held June 9, 2025.

II. FACTUAL BACKGROUND

The PSI report assigned Mr. Simmons a criminal history score of 8 based on the following prior record: (1) a 2016 adult conviction for Battery in the Third Degree, Jefferson County Circuit Court, Case No. 26CR-16-0412, scored at 2 points; (2) a 2019 adult conviction for Criminal Mischief in the First Degree, Pulaski County Circuit Court, Case No. 60CR-19-1087, scored at 2 points; (3) a 2013 juvenile adjudication for Aggravated Assault, Jefferson County Juvenile Division, Case No. 26JV-13-0058, scored at 2 points; and (4) the defendant's supervision status at the time of the current offense (on parole), scored at 2 points.

III. ARGUMENT: THE JUVENILE ADJUDICATION SHOULD NOT BE SCORED

A.C.A. §16-90-802(d)(1) provides the rules governing the inclusion of juvenile adjudications in the criminal history score. Under the Sentencing Commission's guidelines, a juvenile adjudication may be included in the criminal history score **only if** it meets all of the following conditions: (a) the adjudication was for an offense that would be classified as a felony if committed by an adult; (b) the adjudication occurred after the juvenile's fourteenth birthday; and (c) the adjudication occurred within ten years of the current offense.

Mr. Simmons's juvenile adjudication for Aggravated Assault (Case No. 26JV-13-0058) was entered on March 15, 2013. Mr. Simmons's date of birth is September 22, 1997. At the time of the adjudication, he was 15 years old, which satisfies condition (b). The

offense of Aggravated Assault is a Class D felony under A.C.A. §5-13-204, satisfying condition (a).

However, the current offenses — Battery in the Second Degree and Terroristic Threatening in the First Degree — were committed on February 14, 2025. The juvenile adjudication was entered on March 15, 2013. This means **11 years and 11 months** elapsed between the juvenile adjudication and the current offense. This exceeds the ten-year lookback period specified in §16-90-802(d)(1)(c). Therefore, the juvenile adjudication should **not** have been included in the criminal history score calculation.

IV. IMPACT ON PRESUMPTIVE SENTENCE

If the juvenile adjudication is removed, Mr. Simmons's criminal history score drops from 8 to 6. For Offense #1 (Battery Second Degree, Seriousness Level 5, Class D felony), the presumptive sentence at a criminal history score of 8 is a prison sentence of 48 to 120 months. At a score of 6, the presumptive range narrows to 36 to 96 months. The Court imposed 120 months as an aggravated departure above the presumptive range. If the score is corrected, the degree of departure would increase, potentially requiring additional justification under Act 423 of 2017.

For Offense #2 (Terroristic Threatening First Degree, Seriousness Level 3, Class D felony), the presumptive sentence at a score of 8 is Community Correction Center or Alternative Sanction. At a score of 6, the presumptive sentence remains Community Correction Center or Alternative Sanction. The Court's dispositional departure to 48 months ADC is a departure regardless of the criminal history score, but the magnitude of the departure changes.

V. REQUESTED RELIEF

Defense counsel respectfully requests that the Circuit Clerk flag this issue for the Court's review before the sentencing orders are finalized and distributed. We request that the Court: (1) recalculate the criminal history score excluding the time-barred juvenile adjudication; (2) determine whether the revised presumptive range affects the departure analysis; and (3) if warranted, amend the sentencing orders accordingly. Defense counsel does not seek resentencing at this time but preserves all rights to seek post-conviction relief if the score is not corrected.

Respectfully submitted,

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Date: June 9, 2025